

25STCV17549 25STCV17549

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-21

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Case Number: 25STCV17549 Hearing Date: August 21, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 21, 2026

Case Name: Joo v. Lee, et al.

Case No.: 25STCV17549

Matter: Motion to Compel Further Responses

Moving Party: Defendant Seung Kyung Park

Responding Party: Plaintiff Min Woo Joo

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action arising from an unpaid loan. Plaintiff alleges, "On or about April 3, 2025, Plaintiff and Defendant Lee entered into a written 'Secured Promissory Note,' pursuant to which Plaintiff loaned Lee \$5,000 plus 50% of all operational expenses

paid by Plaintiff for Refined Current, LLC during 2025. The note required repayment upon the earlier of December 31, 2025 or the occurrence of a first sales transaction and distribution to Lee. . . . To date, despite repeated demands Lee has refused and failed to repay the amounts due under the Note."

Defendant Seung Kyung Park now seeks to compel further responses to her requests for production, set two, nos. 3-6 from Plaintiff Min Woo Joo.

A response to a demand for production must contain a statement of compliance (Code Civ. Proc. § 2031.220), a representation of inability to comply (Code Civ. Proc. § 2031.230), or a specific objection (Code Civ. Proc. § 2031.240).

Plaintiff's responses to RFP Nos. 3–6 state that "responsive, non-privileged documents, if any, will be produced to the extent such documents exist and are within Responding Party's possession, custody, or control." This conditional, hybrid language fails to comply with the Discovery Act. The phrase "if any... to the extent such documents exist" is evasive. The Code requires an unequivocal statement of whether the responding party will comply (in whole or in part) or lacks the ability to comply following a diligent search and reasonable inquiry.

Plaintiff's boilerplate overbreadth and relevance objections are unavailing. In a suit alleging breach of a promissory note triggered by sales distributions and seeking a constructive trust over business operations, corporate sales contracts, revenues, and receipts of Refined Current, LLC (RFP Nos. 3–5) and proof of special damages (RFP No. 6) are directly relevant to the subject matter and discoverable under Code of Civil Procedure § 2017.010.

In sum, the Motion is granted. Further responses/production are to be provided within 20 days.

No sanctions.

Moving party to give notice.